



AN ISO 9001 & 14001 COMPANY

## **TENDER DOCUMENT**

**NIT No: PCO/BBSR/806/156**

### **FOR**

Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha

#### **EXECUTING AGENCY**

**Engineering Projects (India) Limited**

**PCO, Bhubaneswar - Odisha**

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## **VOLUME – I**

NIT, Addendum To Instructions To Bidders, Special Instructions To Bidders For E-Tendering, Affidavit of NIT, Letter of Undertaking, Form of Tender, Memorandum, Bidder Information, Annexures

**ENGINEERING PROJECTS (INDIA) LTD.**  
(A. Govt. of India Enterprise)  
**PCO-Bhubaneswar**

**NIT No: PCO/BBSR/806/156**

**Date- 05.02.2024**

**NOTICE INVITING e- TENDER (NIT)**

**Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

Engineering Projects (India) Ltd., invites the online **open e-Tenders on Item rate Basis** from the eligible contractors/firms who fulfil the eligibility criteria as per the brief particulars of scope for the **“Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha”** in two bid system (Techno-commercial bid & Price Bid) for the following works:

| <b>Sr. No.</b> | <b>Name of Work</b>                                                                                                                                                                 | <b>Tentative Estimated Cost<br/>(Excluding GST)</b> | <b>Project Duration</b>                                                                                    | <b>EMD(Rs.)</b>                                                                        | <b>Tender Fee<br/>(Rs.)</b>                                 |
|----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|-------------------------------------------------------------|
| 1.             | Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha | Rs.<br>1,49,81,795.00                               | Total work to be completed in 60 (Sixty) days, which shall be reckoned from the 10th day from issue of LOI | Rs. 2,99,636/-<br>(Rupees Two Lakhs Ninety Nine Thousands Six Hundred Thirty Six only) | Rs.11,800.00<br>(Rupees Eleven Thousand Eight Hundred only) |

**1.0 Scope of Work:**

The brief scope of work included in this tender shall include execution of miscellaneous civil works such as Reinforced concrete work, structural steel, brick work, plastering, flooring, WPC doors & aluminum windows, structural glazing, false ceiling, sanitary & plumbing works including laying of pipe lines and fixing of sanitary fitting, internal electrical works, ICT works and other allied works including testing & commissioning at RourkelaONE project, Rourkela, Sundergarh Dist., Odisha including all men, machinery and materials required for completion of works. Apart from above, any other services not covered above but required for completion of items at RourkelaONE project. The quantities mentioned in Bill of Quantities attached is tentative only, some of the quantities may or may not execute.

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### Time schedule of Tender activities:

- (i) Start Date & Time for Downloading of tender documents **06.02.2023 from 06:00 PM**
- (ii) Last Date of Receiving Queries - Bidders are requested to send their queries after visiting the site through email upto 04 days prior to due date of submission of tender and reply will be given accordingly.
- (iii) Last Date & Time of submission of Tender (online): **13.02.2023 up to 03:00 PM**
- (iv) Date & Time of online opening of tender (Techno-Commercial Bid) : **14.02.2023 at 03:00 PM**

### 2.0 Qualification Criteria:

Contractors/Bidders who fulfill the following requirements are eligible to participate in this tender. **The joint ventures/Consortium is not accepted.**

- a) The bidders must have experience of having successfully completed following similar works during the last seven (7) years ending last day of the month previous to the one in which applications invited should be either of the following:

Three similar works, each costing not less than or equal to **FORTY PERCENT (40%)** of total cost put tender

OR

Two similar works, each costing not less than or equal to **FIFTY PERCENT (50%)** of total cost put tender

OR

One similar work of costing not less than or equal to **EIGHTY PERCENT (80%)** of total cost put tender

The "similar works" shall mean any "the bidder should have experience in completion of works such as structural glazing, water proofing works, internal electrical, sanitary & plumbing works, false ceiling, fire detection & alarm system, PA system, CCTV etc., in commercial buildings".

**Note- Bidder shall submit copies of Completion certificates along with LOA / LOI, Contract agreement clearly mentioning the detail scope of work, value of work, date of start, time as per LOI and actual date of completion and actual value of work completed. The experience certificate in this regard should be issued by officer not below the rank of Executive Engineer / Project Manager / Unit Officer. In case of experience certificate issued by private firm, it should be supported with Form 26AS duly certified by CA certificate.**

- (i) For evaluation purpose, the completion cost of works mentioned in the Completion Certificate shall be enhanced by Seven Percent (7%) per annum till the end on previous date of last day of submission of bids.
- (ii) The cost of free issue materials shall not be included in the completion cost of works.
- (iii) The experience certificates issued by any Government Organizations / Semi Government Organizations / Autonomous Bodies / Municipal Bodies / Public Limited Companies listed on BSE / NSE and private party shall be accepted for assessing the eligibility of the tenderer. In

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case of private party Income Tax Return File is to be submitted. However, the completion certificates issued must be supported by work order/Agreement & completion certificates.

- b) Should have average annual financial turnover on works amounting at least 50% of the estimated cost put to tender during the last three consecutive financial years ending on 31.03.2023. Turnover certificate with balance sheets duly certified by a Chartered Accountant along with UDIN issued by ICAI is also to be submitted.
- c) Should not have incurred any losses in more than two years during the immediate last five consecutive financial years, ending on 31.03.2023, Copies of Annual report and Profit & Loss Statement duly certified by a Chartered Accountant along with UDIN issued by ICAI is also to be submitted.
- d) Should have a Banker's Certificate from a Nationalized/Scheduled Bank of the amount equal to 40% of the Estimated Cost put to tender (ECPT). The Banker's Certificate or should not have been issued earlier than Three (03) Months of last date of submission of tender.

OR

Net Worth Certificate of minimum 10% of the estimated cost put to tender issued by certified Chartered Accountant with Unique Document Identification Number (UDIN). The Net Worth certificate shall be of the last financial year ending on 31<sup>st</sup> March 2023.

The Banker's Certificate & Net worth Certificate shall be in the format prescribed in Annexure-F of NIT.

- e) Bidder has to submit undertaking regarding details of Constitution of firm/Company along with the details of its Directors as per enclosed Annexure-C. In case the bidder fails to submit Constitution of firms with the bid along with the details of its firm Directors as per Annexure-C their bid will be rejected.
- f) The Bidder should not be currently declared ineligible/suspended/blacklisted/banned/debarred by EPIL or by any Central/State Govt. Department/Public Undertaking or Enterprise of Central/State Government and such ban should not be in force at the time of submission of the bid or extended deadline for submission of bid. Bidder has to submit a notarized self-declaration with the bid in respect of the same that **"(.....Agency Name...) has not been currently declared ineligible/suspended/blacklisted/banned/debarred by EPIL or by any Central/State Govt. Department/Public Undertaking or Enterprise of Central/State Government and such ban should not be in force at the time of submission of the bid or extended deadline for submission of bid"**.

**Notwithstanding anything stated in tender, EPI reserves the right to assess the capabilities and capacity of the tenderer to perform the contract, in the overall interest of EPI. In case, tenderer's capabilities and capacities are not found satisfactory, EPI reserves the right to reject the tender. The credentials of the Bidders with respect to Technical & Financial criteria shall be verified and inspection of the works, if required, to be carried out by EPI. If not found satisfactory by EPI, their bid will be considered non-responsive and rejected.**

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## **2.1 Evaluation of the bidders:**

Evaluation of the Bidders shall be subject to thorough verification of their documents related with credentials, BG and Bankers Certificate or Net-worth certificate and inspection of similar type works carried out / in progress by them, through a Technical Committee of experts to be constituted by EPIL. Technically qualified bidders shall be considered eligible for second stage of opening Price Bid only after receiving the confirmations of Credentials, BG & Bankers Certificate confirmation from the concerned Department/Bank.

## **3.0 Tender documents comprising of the following are available on the website of EPI: [www.epi.gov.in](http://www.epi.gov.in) & CPP Portal: [www.etenders.gov.in](http://www.etenders.gov.in)**

- (i) Notice Inviting Tender, Addendum to Instructions to Tenderers, Special instructions to Bidders for e-Tendering, Letter of Undertaking, Form of tender, Memorandum, Bidder Information, Affidavit for NIT (Annexure-A), Site Visit Declaration (Annexure-B), Letter of Undertaking for Constitution of Firm (Annexure-C), Declaration for local content (Annexure-D), BG format for Security Deposit (Annexure-E) and Net worth certificate or Banker's Certificate Format (Annexure-F). (Vol-I)
- (ii) Additional Conditions of Contract, General Conditions of Contract, Technical Specifications with Scope of Work and Tender Drawings (Vol-II)
- (iii) Price Bid & Bill of Quantities - (Vol-III)

## **4.0 An attested copy of power of attorney/affidavit/Board. Resolution executed as under shall accompany the 'Tender Documents'.**

- a) In case of Sole Proprietorship, an affidavit of Sole Proprietorship and if the tender is signed by any other person Power of Attorney by the Sole Proprietor in favour of signatory.
- b) In case of Partnership, if document is not signed by all the partners, Power of Attorney in favour of the Partner/person signing the documents authorizing him to sign the documents. The person signing the documents should also have a specific authority to refer disputes with the partnership firm to arbitration.
- c) In case of Company, copy of the Board Resolution authorizing the signatory to sign on behalf of the Company.

The tenderer shall furnish the name (s) and designation of relative (s) if any, employed by EPI.

## **5.0 In order to participate, the bidder should have Digital Signature Certificate (DSC) from one of the authorized Certifying Authorities. Interested bidders have to necessarily register themselves on the portal <https://etenders.gov.in/eprocure/app> to participate in the bidding under this invitation for bids. It shall be the sole responsibility of the interested bidders to get them registered at the aforesaid portal for which they are required to contact**

For any technical related queries please call at 24 x 7 Help Desk Number

0120-4001 002, 0120-4001 005, 0120-6277 787

International Bidders are requested to prefix +91 as country code

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Technical - support-eproc@nic.in

Policy Related - cppp-doe@nic.in

They may obtain further information regarding this tender from **Deputy General Manager (T)** at the address given at **Clause No. 23.0** below from 10:00 hours to 17:00 hours on all working days till the last date of online submission of Bidding Documents. **No special character like! @, #, \$, %, &, \*, \_ to be include while saving the file/uploading.**

For proper uploading of the bids on the portal namely <https://etenders.gov.in/eprocure/app> (hereinafter referred to as the 'portal'), it shall be the sole responsibility of the bidders to apprise themselves adequately regarding all the relevant procedures and provisions as detailed at the portal as well as by contacting M/s CPPP., directly, as and when required, for which contact details are mentioned above. The EPI in no case shall be responsible for any issues related to timely or properly uploading/submission of the bid in accordance with the relevant provisions of Section Instruction to Bidders of the Bidding Documents.

- 6.0** Bidders can download the bid document from the portal without registering or paying document fees in advance, any time from 18:00 Hrs. on **06.02.2024**; However interested bidders have to pay tender fees for participating in the tendering and submitting the bid. For this purpose, the interested bidders shall be required to pay **Rs. 10,000/- (Rupees Ten Thousand) plus GST @ 18% i.e. Rs. 11,800/- (Rupees Eleven Thousand Eight Hundred only)** as non-refundable document fees and the bidders have to submit, the scanned copy of Tender fee receipt after depositing the tender fee online in EPI's Bank Account (as mentioned Below) along with the online bid.

Indian Overseas Bank:  
Name of Branch: IOB, Sahid Nagar  
IFSC Code: IOBA0000873  
Name of A/c Holder: EPI LTD  
A/C Number: 087302000001168  
Account Type: Current

**It is to be noted that being a "Works Contract" MSME benefits are not applicable. Hence all bidders have to pay tender fees and EMD of requisite amount as specified in the tender. If the offer is received without requisite Tender Fee and EMD the Bid will be rejected.**

- 7.0** E-Bids must be submitted/uploaded along with scanned copies of relevant documents pertaining to **Clause no. 2.0 & Clause no. 22.0** under Single Stage Two Envelope Bidding Procedure on the CPP portal on or before last date and time of online bid submission. Late bids will not be accepted. Under the above procedure, only the first envelope (Technical Part) shall be opened in the presence of the bidders' representatives who choose to attend in person at the address given below on schedule date and time of bid opening or may be viewed by the bidders by logging in to the portal as per features available to them. Second envelope i.e. Price part shall be opened of technically qualified bidders.

**The bid must be accompanied by an Earnest Money Deposit (EMD) of Rs. 2,99,636/- (Rupees Two Lakhs Ninety-Nine Thousand Six Hundred Thirty-Six only).** This can be either in the form of Insurance Surety Bond or Account Payee Demand Draft or Fixed Deposit Receipt or Banker's cheque or Bank Guarantee of any Nationalized Bank/Scheduled Bank/Commercial bank as per the enclosed

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format or payment online in an acceptable form for the full amount of EMD payable favouring "Engineering Projects (India) Limited" payable at Bhubaneswar. The EMD shall be valid for minimum period of 150 days (One hundred fifty) from the last day of submission of tender. The earnest money (if any) will be forfeited without any prejudice to any right or remedy, in case the Bidder withdraws his offer(s) during the validity period or in case he changes his offer to his benefits, which are not acceptable to EPI. If the bidder is submitted a scanned copy of EMD, then Physical submission of Original EMD is to be submitted by lowest bidder before award of LOI/LOA of successful bidder.

**The validity of offer(s) submitted by Tenderer shall be ninety (90) days from the last date of submission of the Tender. The validity period may be extended on mutual consent.**

**Note: BG should be submitted with Structured Finance Managing System (SFMS) issued by beneficiary bank.**

## **7.1 Return of EMD**

"The earnest money given by all the bidders except the lowest bidder should be refunded immediately after the expiry of stipulated bid validity period or immediately after acceptance of the successful bidder, whichever is earlier. However, in case of two bid system, earnest money deposit of bidders unsuccessful during technical bid evaluation etc. should be returned within 30 days of declaration of result of technical bid evaluation." For return of EMD, bidders should submit original request letter (hard copy) having EMD details, bank details and present office address.

- 8.0** The Terms & Conditions contained in this NIT and tender documents shall be applicable. No deviation shall be allowed from the terms and conditions stipulated in the 'Tender Documents' and tender containing deviations are liable to be rejected. In case of any unscheduled holiday, falling on the last day of submission of tender, the next working day will be treated as scheduled day and time for submission of Tender.
- 9.0** The rates quoted by the bidder shall be firm and fixed for the entire period of completion and till handing over of the work. No revision to rates or any escalation shall be allowed on account of any increase in prices of materials, labour, POL and Overheads etc during the entire contract period or extended contract period.
- 10.0** The corrigendum or addendum, extension, cancellation of this NIT, if any, shall be hosted on the EPI's website/ CPP portal <https://etenders.gov.in/eprocure/app> the bidders are required to check these websites regularly for this purpose, to take into account before uploading/submission of tender. **All Corrigendum and addendum are to be uploaded duly signed & stamped with tender documents as bid Annexure.**
- 11.0** The price bid of those bidders whose bid has been technically accepted on the basis of documents submitted and confirmations of Credentials & BGs are received from the concerned department/bank shall be opened with prior intimation to them. The offer of the L-1 bidders shall be accepted subject to the confirmation of authenticity of the PQ documents/BG from the concerned department/bank.
- 12.0** EPI reserves the right to extend the date of submission of the tender or cancel the tender or accept any tender or reject any or all tenders or split the work of tender or annul this tendering process

without assigning any reason and liability whatsoever and to re-invite tender at its sole discretion even if an applicant may satisfy eligibility criteria. There will be no public tender opening. However, selected tenderers may be called for discussions/ clarifications after the tenders have been scrutinized.

**13.0 a)** In case of tie-tender, where two firms are bidding lowest, EPI reserves the right to split the work among these bidders and / or EPI will reserve the right to award the tender to any one of such bidder. Even after opening of tenders EPI may enter into agreement with more than one party or may enter into agreement for part of the total work included in the tender. In such an event, the contractor shall not be allowed to revise upward their quoted rates.

**b)** EPI reserves the right to delete any item while awarding the work.

**14.0** Bidders to use as much as possible the material / services from MSME. Contractors to use as much as possible, the material/service from MSEs & Local suppliers/Manufacturers for promotion of Make in India. For Promotion of Public Procurement (Preference to Make In India) order 2017 (amended on 28.05.2018) GOI Guideline for procurement, the equivalent Indian makes of materials conforming to requisite quality in addition to List of Makes/Brands may be considered subject to approval of Client/Engineer.

**All the bidders (Class –I local supplier, Class-II local Supplier, Non-Local Supplier) shall provide the percentage of local content in their bid as per Annexure-D irrespective of whether they are availing or not availing purchase preference under public procurement (Preference to Make in India) Policy.**

**15.0** In case of any discrepancy between the downloaded tender documents from the website and the uploaded copy by the tenderer, the tender documents appearing in the website being uploaded by EPI with the tender shall hold good for contractual as well as legal purposes. The tenderer shall furnish a **declaration** to this effect that **“no addition/deletion/corrections have been made in the downloaded tender document being uploaded by him and it is identical to the tender document appearing on the Website. In case of any discrepancy between the downloaded tender documents from the website and the uploaded copy by me/us, the tender documents appearing in the website being uploaded by EPI with the tender shall hold good for contractual as well as legal purposes”**.

**16.0** All prospective MSME bidders are requested to get themselves registered on TReDS platform ([www.rxil.in](http://www.rxil.in)) to avail payment benefits.

**17.0** The tenderer must carefully inspect and examine the site and its surrounding and completely satisfy himself before submitting tender as to the nature of the ground, form and the nature of the site, over ground or underground utilities or services which may hinder the progress, means of access to the site, the accommodation he may require and in general shall himself obtain all necessary information to risks, contingencies and other circumstances which may influence or effect the tender. A tenderer shall be deemed to have full knowledge of the site whether he inspects it or not and also of the conditions and specifications. The bidder shall submit **Site visit declaration** (Annexure –B) for the same.

In case bidder decides not to visit site, Bidder has to submit a self-declaration with the bid in respect of the same declaring that “they shall be responsible for all the consequences thereof”

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**18.0** Bidder must submit documentary evidence of having formally certified skilled workforce or commitment by the bidders/ service providers to the effect that they would ensure that all their workers would be skilled through Recognition of Prior Learning (RPL) within two months from the date of commencement of work under the project, at the cost of service provider/vendor. In case, If the bidder doesn't have certificate skilled workforce through **Recognition of Prior Learning (RPL)** till last date of submission of bid then at the time of submission of tender the bidder should submit self-certified Undertaking that bidder shall provide the skilled workers through Recognition of Prior Learning (RPL) within two months from the date of commencement of work under the project.

**19.0** In the event of award of work, the successful tenderer must furnish Security Deposit/all Guarantees (wherever applicable) as specified in 'Tender Documents' within the time specified in the letter communicating acceptance of his offer failing which the Earnest Money Deposit will be forfeited.

**20.0** Submission of a tender by the tenderer implies that he has read the complete contract documents and has made himself aware of the scope, terms & condition and specifications of the work to be done and of conditions at which stores, tools, plant etc. will be issued to him by EPI, if any, local conditions and political situations and other factors having bearing on the execution of the works. No claim of contractor whatsoever, within the purview of this clause, shall be entertained at any stage of the project.

**21.0 Disqualification**

The tenderers may note that they are liable to be disqualified and not considered for the opening of Price Bid if;

- a) Non-Submission of Tender Fee and EMD as per NIT Condition.
- b) Representation in the forms, statements and attachments submitted in the pre- qualification document are proved to be incorrect, false and misleading.
- c) EPI reserves its right to take appropriate action including disqualification of tenderer(s) as may be deemed fit and proper by EPI at any time without giving any notice to the Bidder in this regard. The decision of EPI in the matter of disqualification shall be final and binding on the Bidders.
- d) If bidder have submitted incompletely filled in formats without attaching certified supporting documents and credentials to establish their eligibility to participate in the Tender.
- e) If the tenderers attempt to influence any member of the committee. EPI reserves its right to take appropriate action including disqualification of tenderer(s) as may be deemed fit and proper by EPI at any time without giving any notice to the contractor in this regard. The decision of EPI in the matter of disqualification shall be final and binding on the Tenderers.
- f) If documents are not uploaded by the bidder as per instructions/due to special characters while saving files the files are unable to download the bids will be disqualified.
- g) The Bidder is expected to examine all instructions, forms, terms and specifications in the bidding documents. Failure to furnish all information required by the bidding documents or submission of a bid

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not substantially responsive to the bidding documents in every respect will be at the bidder's risk and may result in the rejection of its bid.

- h) In case of existing contractors of EPI, if progress is not satisfactory in any of the project their bid will be rejected.
- i) The credentials of the Bidders with respect to Technical & Financial criteria shall be verified and inspection of the works, if required, to be carried out by EPI. If not found satisfactory by EPI, their bid will be considered non-responsive and rejected.
- j) Currently (till the last date of bid submission of the tender or till the last date of extended tender) they have record of poor performance such as abandoning the work, rescinding of contract for which the reasons are attributable to the non-performance of the contract, inordinate delay in completion, consistent history of litigation / arbitration awarded against the contractor or any of its constituents or financial failures due to bankruptcy etc. in their on-going / past projects.
- k) In case, any documents, information and/or certificate submitted by tenderer is found to be incorrect/false/fabricated or the tenderer has breached the terms and condition of integrity pact, EPI at its discretion may disqualify/reject/terminate the tenderer, forfeit the EMD and the tenderer shall also be liable to be suspended/debarred for a period which shall not be less than one year extending till maximum for a period of 3 years.

**Note:** If any tenderer withdraws his tender before the said period or issue of letter of acceptance/intent, whichever is earlier, or makes any modifications in the terms and conditions of the downloaded tender which are not acceptable to the EPIL, then the EPIL shall, without prejudice to any other right or remedy, be at liberty to forfeit entire amount of Earnest Money as aforesaid.

**22.0 Bidder shall submit the following documents duly signed with date and stamped a part of Technical bid online. Only Online mode will be accepted for tender submission. No documents are required to be submitted offline by the bidders. Bidder has to upload all the relevant certificates regarding PQ criteria (Clause 2.0) and Clause 22.0 for qualifications with the tender, only uploaded documents will be considered for qualification.**

- a) Document evidence with regard to tender fees and EMD payment (In case bidder has submitted BG for EMD, a copy of SFMS shall also to be submitted along with BG as per Clause no. 7.0).
- b) Notarized Power of Attorney.
- c) Affidavit of NIT (Annexure-A) and Site Visit Declaration (Annexure-B)
- d) Undertaking regarding Constitution of Firm/Company (Annexure-C)
- e) Covering letter for participation in Bid with Bid name, number with All Corrigendum and addendum (if any).
- f) Details of similar works executed along with completion certificate & copy of Work order for qualification as per PQ criteria.
- g) List of works executed during the last 5 years indicating name of the Client, value, date of start and completion date.

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- h) List of works under execution indicating name of the Client, Total Contract Value, Value of balance work in hand, date of start and completion.
- i) CA certified Annual Reports including Audited balance sheets, Financial Turnover and profit and loss accounts along with schedules for the last 5 years upto 31.03.2023 with UDIN issued by ICAI is to be submitted.
- j) Local Supplier Content certificate (Annexure-D) and Documentary evidence for certified skilled workforce as per Clause No. 19.0
- k) Copy of Banker's Certificate or Net Worth Certificate as per format.
- l) Declaration in Letter Head in accordance to Clause no. 15.0 of this NIT for no addition/deletion/ corrections in the downloaded tender document.
- m) A notarized self-certification by bidder in accordance to Clause no. 2.0 (g) of this NIT for not blacklisted/debarred & reprimanded.
- n) Form of Tender and Letter of Undertaking.
- o) Registration Certificate/Memorandum and Articles of Association/ Partnership Deed /Affidavit as proof of the organization set up.
- p) Details of manpower and equipment/plant machinery available with Bidder.
- q) Copy of valid PF Registration No and valid HT license
- r) Memorandum and Bidder Information with banker details as per the format.
- s) Copy of PAN Card and GST Registration Certificate.

**23.0** Bidders may obtain further information regarding this tender at the address given below from 10:00 hours to 17:00 hours on all working days till the last date of online submission of Bidding Documents.

**Deputy General Manager (T)**

**(Contracts Division)**

Engineering Projects (India) Ltd. (PCO, Bhubaneswar)

3rd Floor, Plot no. 108,

Unit-7, Surya nagar,

Bhubaneswar – 751003, ODISHA

**E-mail:** [epil.bbsr@epi.gov.in](mailto:epil.bbsr@epi.gov.in)

**24.0 Only Online mode will be accepted for tender submission.** The bidders have to submit, the scanned copy of Tender fee receipt after depositing the tender fee online in EPI's Bank Account along with the online bid. Also, the scanned copy of Earnest Money Deposit (EMD) as mentioned in the NIT (Insurance Surety Bond, Bank Guarantee, DD, Bankers Cheque etc) shall be submitted by the bidders along with their online bid. However, the original of the same shall be submitted by the bidder at the later stage as and when required by EPI.

**25.0** Post tender clarification shall be governed as per clause no. 79.0 of GCC. However, no clarification will sought in case of non-submission of Tender Fee and EMD of requisite amount or unconditional letter of acceptance or Affidavit for correctness of document/information or Power of Attorney or Net worth/banker's certificate as per format. In such case the bidder shall be rejected summarily without seeking any further clarification/documents.

**26.0** Contact details for site related Queries / Visit:

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**Shri Abdul Aleem,**  
**General Manager,**  
Mobile No-9935064977  
Engineering Projects (I) Limited,  
RourkelaONE project, Near Hockey Chowk,  
Civil Township, Rourkela.  
Email Id: [abdul.aleem@engineeringprojects.com](mailto:abdul.aleem@engineeringprojects.com)

For more information on EPI, visit our website at: <http://www.epi.gov.in>  
For more information on the e-tender visit website <https://etenders.gov.in/eprocure/app>

.....

## Annexure - A

### AFFIDAVIT

(To be submitted by bidder on non-judicial stamp paper of Rs.100/-(Rupees Hundred only)  
duly attested by Notary Public)

Affidavit of Mr ----- So ----- R/o -----.

I, the deponent above named do hereby solemnly affirm and declare as under :

1. That I am the Proprietor/Authorized signatory of M/s .....having its Head / Regd. Office at.....
2. That the information / documents/Experience certificates submitted by M/s ..... along with the tender for ..... (Name of work).... To EPI are genuine, true and nothing has been concealed.
3. I shall have no objection in case EPI verifies them from issuing authority (ies). I shall also have no objection in providing the original copy of the document (s), in case EPI demand so for verification.
4. I hereby confirm that in case, any document, information & / or certificate submitted by me found to be incorrect / false / fabricated, EPI at its discretion may disqualify /reject/ terminate the bid / contract and also forfeit the EMD / All dues.
5. I shall have no objection in case EPI verifies any or all Bank Guarantee(s) under any of the clause (s) of Contract including those issued towards EMD and Performance Guarantee from the Zonal Branch / office issuing Bank and I / we shall have no right or claim on my submitted EMD before EPI receives said verification.
6. That the Bank Guarantee issued against the EMD issued by (name and address of the Bank) is genuine and if found at any stage to be incorrect / false/ fabricated, EPI shall reject my bid cancel pre-Qualification and Debar me from Participating in any future tender for three years.

I, -----, the Proprietor / Authorised signatory of M/s ----- do hereby confirm that the contents of the above Affidavit are true to my knowledge and nothing has been concealed there from ----- and that no part of it is false.

Verified at ----- this ----- day of -----

DEPONENT

ATTESTED BY (NOTARY PUBLIC)

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**LETTER OF UNDERTAKING**  
**(To Be Enclosed In Letter Head)**

To,  
**CONTRACTS DIVISION**  
ENGINEERING PROJECTS (INDIA) LTD.  
PCO, Bhubaneswar

**REF: Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

Sir,

**UNDERTAKING FOR ACCEPTANCE OF TENDER CONDITIONS**

1. The Tender Documents for the work as mentioned in "Memorandum" to "Form of Tender" have been issued to us by ENGINEERING PROJECTS (INDIA) LIMITED and we hereby unconditionally accept the tender conditions and Tender Documents in its entirety for the above work.
2. The contents of clause 1.2 and 1.3 of the Tender Documents (Instructions to Tenderers) have been noted wherein it is clarified that after unconditionally accepting the tender conditions in its entirety, it is not permissible to put any remarks(s) / condition(s) (except unconditional rebate on price, if any) in the 'Price-Bid' enclosed in "Envelope-2" and the same has been followed in the present case. In case this provision of the Tender is found violated at any time after opening "Envelope-2", We agree that our tender shall be summarily rejected and EPI shall, without prejudice to any other right or remedy be at liberty to forfeit the full said Earnest Money absolutely.
3. The required document/Certificate/Declaration for this work is enclosed herewith.

Yours faithfully,

(Signature of the Tenderer)

Seal of Tenderer

Dated:

Sign and Stamp of Bidder

Sign and Stamp of EPIL



**FORM OF TENDER**  
**(To Be Enclosed In Letter Head)**

To,  
**CONTRACTS DIVISION**  
ENGINEERING PROJECTS (INDIA) LTD.  
PCO, Bhubaneswar

**REF: Tender Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

1. We hereby tender for execution of work as mentioned in "Memorandum" to this "Form of Tender" as per Tender Documents within the time schedule of completion of work as per separately signed and accepted rates in the Bill of Quantities quoted by us for the whole work in accordance with the Notice Inviting Tender, Conditions of Contract, Specifications of materials and workmanship, Bill of Quantities Drawings, Time Schedule for completion of jobs, and other documents and papers, all as detailed in Tender Documents.
2. It is agreed that the time stipulated for jobs and completion of work in all respects and in different stages mentioned in the "Time Schedule for completion of jobs" and signed and accepted by us is the essence of the contract. We agree that in case of failure on my/our part to strictly observe the time of completion mentioned for jobs and the final completion of work in all respects according to the schedule set out in the said "Time schedule for completion of jobs" and stipulations contained in the contract, the recovery shall be made from us as specified therein. In exceptional circumstances extension of time which shall always be in writing may, however be granted by EPI at its entire discretion for some items, and We agree that such extension of time will not be counted for the final completion of work as stipulated in the said "Time schedule of completion of jobs".
3. We agree to pay the Security Deposit /Retention money, Performance Guarantee and accept the terms and conditions as laid down in the "Memorandum" to this "Form of Tender".
4. Should this Tender be accepted, We agree to abide by and fulfill all terms and conditions referred to above and as conditioned in Tender Documents elsewhere and in default thereof, allow EPI to forfeit and pay EPI, or its successors or its authorized nominees such sums of money as are stipulated in the Tender Documents.
5. We hereby pay the earnest money amount as mentioned in the "Memorandum" to this "Form of Tender" in favour of Engineering Projects (India) Limited payable at place as mentioned in the "NIT/ITT".
6. If we fail to commence the work within 10 days of the date of issue of Letter of intent and / or We fail to sign the agreement as per Clause 84 of General Conditions of Contract and/or We fail to

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Sign and Stamp of EPIL

submit Performance Guarantee as per Clause 9.0 & 9.1 of General Conditions of Contract, We agree that EPI shall, without prejudice to any other right or remedy, be at liberty to cancel the Letter of Intent and to forfeit the said earnest money as specified above.

7. We are also enclosing herewith the Letter of Undertaking on the prescribed proforma as referred to in condition of NIT.

Date the \_\_\_\_\_ day of \_\_\_\_\_

SIGNATURE OF TENDERER -----  
NAME (CAPITAL LETTERS):  
OCCUPATION -----  
ADDRESS -----  
-----

SEAL OF TENDERER

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**MEMORANDUM**  
**(TO BE ENCLOSED IN LETTER HEAD)**

**REF: Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

| <b>S. NO.</b> | <b>Description</b>                                          | <b>Cl. No.</b>  | <b>Values/Description to be applicable for relevant clause (s)</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---------------|-------------------------------------------------------------|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| i.            | Name of work                                                |                 | Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| ii.           | Client                                                      |                 | <b>Rourkela Smart City Limited, Rourkela</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| iii.          | Type of Tender                                              | NIT             | Item rate Tender                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| iv.           | Earnest Money Deposit                                       | NIT             | <b>Rs. 2,99,636.00</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| v.            | Estimated Cost                                              | NIT             | <b>Rs. 1,49,81,795.00</b> (Excluding GST)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| vi.           | Time for completion of work                                 | NIT             | The Contractual Completion Period shall be 60 (Sixty) days from the 10th day of issue of Letter of Intent (LOI).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| vii.          | Mobilization Advance                                        | ACC Cl. No. 5   | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| viii.         | Interest Rate on Mobilization Advance                       | ACC Cl. No. 5   | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| ix.           | Number of Installments for recovery of Mobilization Advance | ACC Cl. No. 5   | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| x.            | Schedule of Rates applicable                                |                 | Market Rate                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| xi.           | Validity of Tender                                          | NIT             | 90 days from the last date of submission of bid                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| xii.          | Security Deposit cum Performance Guarantee                  | ACC (Cl. No. 3) | 5% (Five Percent only) of the contract value of the accepted tender within 21 (twenty-one) days from the date of issue of Purchase Order (PO)/ Letter of intent (LOI). If required, any extension of time beyond 21 days and up to 60 days may be granted by the Competent Authority. However, a penal rate of interest @ 12% per annum shall be charged for the delay in submission of Security Deposit after 21 (twenty-one) days i.e. from 22nd day to the date of submission of Security Deposit but within 60 days after the date of issue of PO/ LOI. Further, if 60th day happens to be declared holiday in the concerned office of EPI, submission of Security Deposit can be accepted on the next working day. |

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|       |                                    |                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-------|------------------------------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|       |                                    |                  | <p>The SDPG shall be submitted in the form of Bank Guarantee (format enclosed), from any Nationalized bank / Scheduled Bank / Commercial Bank or in the form of Insurance Security Bonds or Account Payee Demand Draft or Fixed Deposit Receipt or online Payment in an acceptable form. This SDPG shall be initially remain valid up to 90 (ninety) days after the end of Defect Liability Period (DLP). In case, the time for completion of work gets extended, the contractor shall get the validity of SDPG extended to cover such extended time for completion of work plus DLP plus 90 days.</p> <p>In case, even after 60 days from the date of issue of PO/ LOI, the Bidder fails to submit the Security Deposit of the requisite amount, PO/ LOI will stand withdrawn and EMD of the Bidder shall be forfeited.</p> |
| xiii. | Retention Money                    | ACC (Cl. No. 6)  | <p>a) The Retention Money shall be deducted from each running bill of the Contractor at 5% (five percent only) of the Running Account bill excluding GST.</p> <p>b) Retention Money shall be refunded to the Contractor after the end of defect liability period (referred to in Clause No.74) or on payment of the amount of the final bill whichever is later.</p> <p>Rest as per GCC Clause no. 10</p>                                                                                                                                                                                                                                                                                                                                                                                                                    |
| xiv.  | Time allowed for starting the work | ACC (Cl. No. 2)  | The Contractual Commencement date shall be from the 10th day of issue of Letter of Intent of Acceptance of Tender.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| xv.   | Defect Liability Period            | ACC (Cl. No. 14) | 36 months from the date of completion of work as per approved design and drawings.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| xvi.  | Arbitration                        | ACC (Cl. No. 15) | As per Additional Conditions of Contract.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| xvii. | Jurisdiction                       | 76.3             | Courts at Bhubaneswar                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

SIGNATURE OF BIDDER :

NAME (CAPITAL LETTERS) :

OCCUPATION :

ADDRESS :

SEAL OF BIDDER :

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

Sign and Stamp of Bidder

Sign and Stamp of EPIL

### **ADDENDUM TO INSTRUCTIONS TO TENDERERS**

Mode of submission of tender is through e-bids only. Hence, clause no. 1 of ITT is deleted.

Kindly refer "Special instructions to Bidders for e-tendering" for downloading & uploading of tender documents as per NIT.

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### **Special instructions to Bidders for e-Tendering**

#### **Some Bidding related Information for this Tender (Sealed Bid)**

The entire bid-submission would be online only and submitted in CPP Portal i.e. [www.etenders.gov.in](http://www.etenders.gov.in).

Broad outline of submissions are as follows:

- Submission of Bid-Parts/ Envelopes
  - *Technical-Part*
  - *Financial-Part*

#### **Submission of Bid:**

The Bidder should upload the scanned copies of all the original documents as mentioned in **NIT Clause No 22.0** and Bid-Annexures during Online Bid-Submission in addition to PQ documents listed in **NIT Clause.2.0**

**BIDDER INFORMATION**  
**(To be submitted by Bidder on its Letter Head)**

|                                                                                                                                                                                       |                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Company Name*</b>                                                                                                                                                                  |                                                                                                                                             |
| <b>Registration Number*</b>                                                                                                                                                           |                                                                                                                                             |
| <b>Registered Address*</b>                                                                                                                                                            |                                                                                                                                             |
| <b>Name of Partners/Directors</b>                                                                                                                                                     |                                                                                                                                             |
| <b>Bidder type*</b><br>Indian/Foreign                                                                                                                                                 |                                                                                                                                             |
| <b>City*</b>                                                                                                                                                                          |                                                                                                                                             |
| <b>State*</b>                                                                                                                                                                         |                                                                                                                                             |
| <b>Country*</b>                                                                                                                                                                       |                                                                                                                                             |
| <b>Postal code*</b>                                                                                                                                                                   |                                                                                                                                             |
| <b>PAN/TAN/GST Number*</b>                                                                                                                                                            | (PAN/TAN number must have 10 characters. e.g. AESTG2458A)                                                                                   |
| <b>Company's Establishment Year</b>                                                                                                                                                   |                                                                                                                                             |
| <b>Company's Nature of business*</b>                                                                                                                                                  |                                                                                                                                             |
| <b>Company's Legal status*</b><br>Limited company/<br>Undertaking/Joint<br>venture/Partnership/others                                                                                 |                                                                                                                                             |
| <b>Company Category*</b><br>Micro unit as per MSME/<br>Small unit as per MSME/<br>Medium unit as per MSME/<br>Ancillary unit/Project of affected person<br>of this company/SSI/others |                                                                                                                                             |
| <b>Contact Details</b>                                                                                                                                                                |                                                                                                                                             |
| Enter Company's Contact Person Details                                                                                                                                                |                                                                                                                                             |
| <b>Title *</b><br>Mr/Mrs/Dr/Shree/Ms                                                                                                                                                  |                                                                                                                                             |
| <b>Contact Name*</b>                                                                                                                                                                  |                                                                                                                                             |
| <b>Date of Birth* (DD/MM/YYYY)</b>                                                                                                                                                    |                                                                                                                                             |
| <b>Correspondence Email*</b>                                                                                                                                                          | (Correspondence Email ID can be same as your Login ID.<br>All The mail correspondence will be sent only to the<br>Correspondence Email ID.) |
| <b>Designation</b>                                                                                                                                                                    |                                                                                                                                             |
| <b>Phone *</b>                                                                                                                                                                        | (Phone details eg: +91 44 22272449)                                                                                                         |
| <b>Mobile*</b>                                                                                                                                                                        |                                                                                                                                             |

Sign and Stamp of Bidder

Sign and Stamp of EPIL

### BANK DETAILS

|                          |  |
|--------------------------|--|
| PAN NO*                  |  |
| GST NO*                  |  |
| NAME OF BANK*            |  |
| ACTIVE BANK A/C DETAILS* |  |
| A/C NO*                  |  |
| A/C TYPE*                |  |
| BRANCH ADDRESS*          |  |
| IFSC *                   |  |

\*Mandatory information (must be filled by the bidders)

Sign and Stamp of Bidder

Sign and Stamp of EPIL



**Site Visit Declaration**  
**(To Be Enclosed in Letter Head)**

To,

Contracts Division  
Engineering projects (India) Limited  
Flat No 201, Plot No – 109,  
The Bamra Manor, Unit – 7, Surya Nagar,  
Bhubaneswar - 751003

**REF: Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

Dear Sir,

I/We ----- Undersigned visited the project site on ----- and collected all the required information and data regarding availability of material and noted the environmental condition. I have also signed the attendance register maintained at site in presence of EPI's representative.

Yours faithfully,

(Signature of the Tenderer)

Seal of Tenderer  
Dated :

Signature of the EPI's site in charge  
Date:

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**UNDERTAKING**  
**(To Be Enclosed In Letter Head)**

**REF: Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

This is to confirm that the following persons are the present Directors of the company/firm:

- 1.
- 2.
- .
- .
- .

It is further confirmed that none of the above Directors is associated with any other company/firm which is quoting for the above referred tender of EPI.

The details of constitution of M/s .....is submitted along with this annexure.

In case, at any later stage the above information is found incorrect, EPI can cancel our BID/LOI/Contract Agreement and may take any suitable action deemed fit against our company.

Authorized Signatory

CEO/Proprietor/MD  
Name & Seal of the Company

Date:

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**LOCAL CONTENT DECLARATION**

**REF: Tender for Execution of miscellaneous works such as Civil & RCC works, Glazing work, Water Proofing work, Sanitary & Plumbing works at RourkelaONE Project, Rourkela, Sundergarh Dist., Odisha**

**NIT No: PCO/BBSR/806/156    Date- 05.02.2024**

We ..... (name of the bidder) undertake that we meet the mandatory minimum local content requirement as per Public Procurement ( Preference to Make in India) local content policy against EPI NIT No. .... dtd ..... The percentage of local content in the bid is .....% and the items offered in the bid meets the minimum local content and shall give details of the location (s) at which the local value addition is made.

(To be self certified by the Bidder)

Date:

Sign and Stamp of Bidder

Sign and Stamp of EPIL

## Annexure - E

### PROFORMA FOR BANK GUARANTEE IN LIEU OF EARNEST MONEY DEPOSIT

In consideration of Chairman & managing Director, Engineering Projects (India) Limited, (A Govt. of India Enterprise), Core-3, Scope Complex, Lodhi Road, New Delhi Pin- 110003. (hereinafter called the EPI) having agreed to accept bank Guarantee of Rs. .... in lieu of EARNEST MONEY DEPOSIT from ..... (hereinafter called the Supplier/ Contractor/ Sub-Contractor, which expression shall include its heirs, successors and assignees) in respect of the Tender for .....

We, ..... bank having its registered/head office at..... (hereinafter referred to as the Bank) do hereby agree and undertake to pay to EPI without demur or protest an amount not exceeding Rs..... on demand by EPI.

We the above said Bank further agree and undertake to pay the said amount of Rs. .... without any demur on demand within 48 hours. Any demand made on the Bank by EPI shall be conclusive as regards the amount due and payable by the Bank under this guarantee.

We the above said Bank further agree that the guarantee herein contained shall be in full force and in effect until ..... date .....

Unless a demand or claim under this guarantee is made on us in writing on or before ..... date ....., we shall be discharged from all liabilities under this guarantee thereafter.

We, the above said Bank, further agree that EPI shall have full liberty, without our consent and without affecting in any manner our obligation to verify, modify or delete any of the conditions.

We, the above said Bank, lastly undertake not to revoke this guarantee during its currency except with the prior consent of EPI in writing.

Dated.....this day of.....200.

For and on behalf of the Bank

**Note: BG should be submitted with Structured Finance Managing System (SFMS) issued by beneficiary bank.**

Sign and Stamp of Bidder

Sign and Stamp of EPIL

**BANKERS' CERTIFICATE FROM A SCHEDULED BANK**

This is to certify that to the best of our knowledge and information that M/s./ Sh. ....  
..... having marginally noted address,..... as a Customer of our bank  
are/ is respectable and can be treated as good for any engagement up to a limit of Rs.....  
(Rupees .....)

This certificate is issued without any guarantee or responsibility on the bank or any of the officers.

(Signature) For the Bank

**NOTE**

1. Bankers Certificates should be on letter head of the Bank, addressed to tendering authority .
2. In case of \_Partnership firm, certificate should include names of all partners as recorded with the Bank.

**FORM FOR CERTIFICATE OF NET WORTH FROM CHARTERED ACCOUNTANT**

"It is to certify that as per the audited balance sheet and profit & loss account during the financial year  
....., the Net Worth of M/s ..... (Name & Registered Address of  
individual/firm/ company), as on ..... (the relevant date) is Rs.  
..... after considering all liabilities. It is further certified that the Net Worth of the  
company has not eroded by more than 30% in the last three years ending on (the relevant date)."

Unique Document Identification Number (UDIN) .....

Signature of Chartered Accountant .....  
Name of Chartered Accountant .....  
Membership No. of ICAI .....  
Date and Seal .....

**PROFORMA FOR SECURITY DEPOSIT CUM PERFORMANCE GUARANTEE**

The Chairman & Managing  
Director, Engineering Projects (India) Ltd.,  
Core-3, SCOPE Complex  
7, Institutional Area,  
Lodhi road, New Delhi –110 003

Dear Sir,

In consideration of the Chairman & Managing Director, Engineering Projects (India) Ltd. (hereinafter called 'EPI' which expression shall unless repugnant to the subject or context includes its successors and assigns) having agreed under the terms and conditions of supply contract /sub-contract no..... Dated.....made between..... (hereinafter referred to as the said Supplier/subcontractor) which expression shall unless repugnant to the subject or context includes its successors and assigns) and EPI in connection with.....  
(Hereinafter called 'The said supply Contract/Sub-contract) to accept a Deed Security Deposit-cum-Performance bank guarantee as herein provided for lieu of:

- a) The Security Deposit to be made by the said supplier/sub-contractor for the due fulfillment by the said supplier/sub-contractor of the terms and conditions contained in the said supply contract/subcontract, and
- b) Fulfillment of the conditions of the said supply contract /sub-contract/furnishing a security for the performance of the equipment in accordance with conditions of the said Contract.

We..... (Hereinafter referred to as "the said bank a Government of India Undertaking which expression shall unless repugnant to the subject or context includes its successors and assigns) and having our registered office at .....do hereby unconditionally and irrevocably undertake and agree to indemnify and keep indemnified EPI from time to time to the extent of (.....) only against any loss of damages, costs, charges and expenses caused to or suffered by or that may be caused or suffered by EPI by reason of any breach or breaches by the said supplier/sub-contractor of any of the terms and conditions contained in the said supply contract/sub-contract and or any amount becoming due for non-performance and /or penalty as assessed by EPI and to unconditionally pay the amount claimed by EPI on demand and without demur.

We the said Bank further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said supply contract/sub-contract and till all the dues of EPI under the said supply contract/sub-contract or by virtue of any of the terms and conditions governing the said contract have been fully paid and its claims satisfied or discharged and till EPI certifies that the terms and conditions of the said supply contract/sub-contract have been fully and properly carried out by the said supplier/ sub-contractor and accordingly discharge this guarantee subject, however, that EPI shall have no claim under this guarantee after 6 months from the date of

Sign and Stamp of Bidder

Sign and Stamp of EPI

expiry of the guarantee unless a notice of the claim under this guarantee has been served on the Bank before the expiry of the said period of 6 months.

EPI shall have the fullest liberty without affecting in any way the liability to the said Bank under this Guarantee or indemnity from time to time to vary any of the terms and conditions of the said supply contract/sub-contract to extend time of performance of the said Contract or to postpone for any time and from time to time any power's exercisable by it against the said Supplier/sub-contractor and either to enforce or forbear from enforcing any of the terms and conditions governing the said contract or securities available to EPI and the said Bank shall not be released from its liability under these presents by any exercise by EPI of the liberty with reference to the matters aforesaid or by reason of time being given to the said supplier/sub-contractor or of any other matter or thing whatsoever which under the law relating to sureties would but for this provisions have the effect of so releasing the said bank from its such liability.

We, the said bank, further agree that EPI shall be the sole judge of and as to whether the said supplier/sub- contractor has committed any breach or breaches of any of the terms and conditions of the said supply contract/ sub-contact and the extent of loss, damage, cost, charges and expenses caused to or suffered by or that may be caused to or suffered by EPI on account thereof and the decision of EPI that the said supplier/sub-contractor has committed such breach or breaches and as to the amount or amounts of loss, damages, costs, charges and expenses caused to or suffered by EPI from time to time shall be final and binding on the bank.

This guarantee shall be a continuing guarantee and shall remain valid and irrevocable for all claims of EPI and liabilities of the said supplier/sub-contractor arising upto and until mid night of....., subject the claim period as mentioned in para.....

This guarantee shall be in addition to any other guarantee or security whatsoever that EPI may now or at any time anywise may have in relation to the said supplier/sub-contractor obligation/liabilities under and/or in connection with the said supply contract/sub-contract and EPI shall have full authority to take recourse to or enforce this guarantee in preference to any other guarantee or security which EPI may have or obtain and there shall be no forbearance on the part of EPI IN ENGINEERING OR REQUIRING ENFORCEMENT OF ANY OTHER SECURITY AND shall not have the effect of releasing the said bank from its full liability hereunder:

EPI shall be at liberty without reference to the said bank and without effecting the full liability of the said Bank hereunder to take any other security in respect of the said supplier's/sub-contractor's obligations and/or liabilities under or in connection with the said contract.

This guarantee shall not be determined or affected by the liquidation or winding up, dissolution, or change of constitution or insolvency of the said supplier/sub-contractor, but shall in all respects and for all purposes be binding and operative until payment of all moneys paid to EPI in terms thereof.

The said bank hereby waives all rights at any time inconsistent with the terms of this guarantee and the obligations of the said bank in terms hereof shall not be anywise affected or suspended by reasons of any dispute or disputes having been raised by the said supplier/sub-contractor.(whether or not pending before any arbitrator, tribunal or court) of any denial or liability by the said supplier/sub-contractor stopping or preventing or purporting to stop or prevent any payment by the said bank to EPI in terms hereof.

The amount stated in any notice of demand addressed to EPI to the Guarantor as liable to be paid to EPI by the Supplier/sub-contractor on account of any losses or damages or costs, charges and /or

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expenses shall as between the said bank and EPI be conclusive providence of the amount so liable to be paid to EPI or suffered or incurred by EPI as the case may be and payable by the said Bank to EPI in terms hereof. We, the said Bank further undertake that we shall pay forthwith the amount stated in the notice of demand to EPI without demur.

We, the said bank undertake not to revoke this quarantine during its currency except with the consent of EPI in writing and agree that any change in the constitution of the said supplier/sub-contractor or the said Bank shall not discharge our liabilities hereunder.

It shall not be necessary for EPI to proceed against the said supplier/sub-contractor before proceeding against the Bank and the guarantee herein contained shall be enforceable against the bank notwithstanding any security which EPI may have obtained or obtain from the supplier/sub-contractor shall at the time when proceedings are taken against the said Bank hereunder be outstanding or unrealized.

Our liability under this guarantee shall be restricted to.....and this guarantee shall remain in force until midnight of .....unless a claim to enforce this guarantee is filed with us within six months from .....(which is date of expiry of this guarantee), we shall be discharged from all liabilities under this guarantee thereafter.

Dated..... This day of ..... 20.....

FOR AND ON BEHALF OF BANK

**Note: BG should be submitted with Structured Finance Managing System (SFMS) issued by beneficiary bank.**

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